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NOTE

From:	General Secretariat of the Council
To:	Delegations
Subject:	Presidency compromise text on Omnibus VII – Digital (GDPR/P2B)

Delegations will find in the Annex a Presidency compromise text in relation to the above proposal, for examination at the meeting of the Antici Group (Simplification) on 27 February 2026.

Additions to the Commission proposal are indicated in **bold**, deletions are marked as ~~strikethrough~~. Changes compared to the Commission Proposal (ST 15698/25) are marked in **bold underlined**.

REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL amending Regulations (EU) 2016/679, (EU) 2018/1724, (EU) 2018/1725, (EU) 2023/2854, (EU) 2022/2554, and (EU) 910/2014 and Directives 2002/58/EC, (EU) 2022/2555 and (EU) 2022/2557 as regards the simplification of the digital legislative framework, and repealing Regulations (EU) 2018/1807, (EU) 2019/1150, (EU) 2022/868, and Directive (EU) 2019/1024 (Digital Omnibus)

- (27) ~~This Regulation proposes a series of targeted amendments to Regulation (EU) 2016/679 for clarification and simplification, whilst preserving the same level of data protection. Article 4 of Regulation (EU) 2016/679 provides that personal data is any information relating to an identified or identifiable natural person. In order to determine whether a natural person is identifiable, account should be taken of all the means reasonably likely to be used to identify the natural person directly or indirectly. Taking into account the caselaw of the Court of Justice of the European Union concerning the definition of personal data, it is necessary to provide further clarity on when a natural person should be considered to be identifiable. The existence of additional information enabling the data subject to be identified does not, in itself, mean that pseudonymised data must be regarded as constituting, in all cases and for every person or entity, personal data for the purposes of the application of Regulation (EU) 2016/679. In particular, it should be clarified that information is not to be considered personal data for a given entity where that entity does not have means reasonably likely to be used to identify the natural person to whom the information relates. A potential subsequent transmission of that information to third parties who have means reasonably allowing them to identify the natural person to whom the information relates, such as cross-checking with other data at their disposal, renders that information personal data only for those third parties who have such means at their disposal. An entity for which the information is not personal data, in principle, does not fall within the scope of application of Regulation (EU) 2016/679. In this respect the Court of Justice of the European Union has held that a means of identifying the data subject is not reasonably likely to be used where the risk of identification appears in reality to be insignificant, in that the identification of that data subject is prohibited by law or~~

~~impossible in practice, for example because it would involve a disproportionate effort in terms of time, cost and labour. An example of a prohibition against reidentification can be found in the obligations of health data users in Article 61(3) of Regulation (EU) 2025/327 of the European Parliament and of the Council¹. The Commission, together with the European Data Protection Board, should support controllers in the application of this updated definition by stipulating technical criteria in an implementing act.~~

- (27a) **In order to determine whether a natural person is identifiable, account should be taken of all the means reasonably likely to be used to identify the natural person directly or indirectly. Taking into account the case-law of the Court of Justice of the European Union, it is important to provide further clarity on when a natural person should be considered to be identifiable. The European Data Protection Board should support controllers by adopting guidelines assessing and specifying the state of the art of available techniques, as well as the technical and organisational measures and criteria to pseudonymise personal data effectively, and clarifying circumstances whether a natural person is identifiable and means reasonably likely to be used to identify a natural person, including means and criteria to determine whether data resulting from pseudonymisation may no longer constitute personal data for certain entities. While controllers remain fully responsible to determine whether data resulting from pseudonymisation is personal, the guidelines should support controllers in implementing such measures and criteria, and provide guidance to demonstrate whether pseudonymised data do not lead to re-identification of data subjects.**
- (28) ~~In order to assess whether research meets the conditions of scientific research for the purpose of this Regulation, account can be taken of elements such as methodological and systematic approach applied while conducting the research in the specific area. Research and technology development should be conducted in academic, industry and other settings, including small and medium sized undertakings, (Article 179(2) TFEU) and should be~~

¹ ~~Regulation (EU) 2025/327 of the European Parliament and of the Council of 11 February 2025 on the European Health Data Space and amending Directive 2011/24/EU and Regulation (EU) 2024/2847 (OJ L, 2025/327, 5.3.2025, ELI: <http://data.europa.eu/eli/reg/2025/327/oj>)~~

~~always of a of high quality and should adhere to the principles of principles of reliability, honesty, respect and accountability (verifiability).~~

- (29) It should be reiterated that further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes should be considered to be compatible lawful processing operations. In such cases it ~~is not~~ **should not be** necessary to ascertain on the basis of Article 6(4) of this Regulation (EU) 2016/679 whether the purpose of the further processing is compatible with the purpose for which the personal data are initially collected. **Such further processing should be considered compatible, provided that it is carried out in compliance with the principle of purpose limitation and subject to appropriate safeguards laid down in Regulation (EU) 2016/679, in particular Article 89. The qualification of processing as being carried out for scientific research purposes should be based on objective characteristics of the research activity and should not rely solely on the declaration of the controller, nor undermine the obligation to apply appropriate safeguards as provided for in Article 89 of Regulation (EU) 2016/679. In order to assess whether scientific research activities meet the conditions of scientific research for the purpose of Regulation (EU) 2016/679, account can be taken of elements such as the purpose of the research, the methodological approach and ethical standards applied in the specific area while conducting the research, and adherence to the principles of transparency, reliability, accountability and oversight, verifiability, and rules for research integrity. Scientific research activities should concur to public interest and well-being, prevent individuals from being subjected to harm or other adverse effects due to participating in scientific research and include – among other things – the respect for human autonomy and the notion of consent to participate in research. Scientific research activities can, amongst others, support innovation such as technology development and may be conducted in academic, industry and other settings, by public authorities or private entities, including small and medium sized undertakings.**
- (30) Trustworthy AI is key in providing for economic growth and supporting innovation with socially beneficial outcomes. The development and use of AI systems and the underlying models such as large language models and generative video models rely on data, including personal data, in various phases in the AI lifecycle, such as the training, testing and validation phase and may in some instances be retained in the AI system or the AI model. The processing of personal data in this context may therefore be carried out for purposes of

a legitimate interest within the meaning of Article 6 of Regulation (EU) 2016/679, where appropriate. This does not affect the obligation of the controller to ensure that the development or use (deployment) of AI in a specific context or for specific purposes complies with other Union or national law, or to ensure compliance where its use is explicitly prohibited by law. It also does not affect its obligation to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

- (31) When the controller, in the light of the risk-based approach which informs the scalability of the obligations under this Regulation, is balancing the legitimate interest pursued by the controller or a third party and the interests, rights and freedoms of the data subject, consideration should be given to whether the interest pursued by the controller is beneficial for the data subject and society at large, which may for instance be the case where the processing of personal data is necessary for detecting and removing bias, thereby protecting data subjects from discrimination, or where the processing of personal data is aiming at ensuring accurate and safe outputs for a beneficial use, such as to improve accessibility to certain services. Consideration should also, among others, be given to reasonable expectations of the data subject based on their relationship with the controller, appropriate safeguards to minimise the impact on data subjects' rights such as providing enhanced transparency to data subjects, providing an unconditional right to object to the processing of their personal data, respecting technical indications embedded in a service limiting the use of data for AI development by third parties, the use of other state of the art privacy preserving techniques for AI training and appropriate technical measures to effectively minimise risks resulting, for example, from regurgitation, data leakage and other intended or foreseeable actions.
- (32) The processing of personal data for scientific research purposes and the application of the GDPR's provisions on scientific research are conditional on the adoption of appropriate safeguards for the rights and freedoms of data subjects, pursuant to Article 89(1) GDPR. To that end, the GDPR balances the right to protection of personal data, pursuant to Article 8 CFREU, with the freedom of science, pursuant to Article 13 CFREU. The processing of personal data for the purpose of scientific research ~~therefore pursues~~ **may be necessary for the purposes of the legitimate interests pursued by a controller or by a third-party** within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, provided that such research is not contrary to Union or Member State law. **Scientific research can**

also follow public interest and be based on Member States and Union law. This is without prejudice to the obligation of the controller to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met.

- (33) The development of certain AI systems and AI models may involve the collection of large amounts of data, including personal data and special categories thereof. Special categories of personal data may residually exist in the training, testing or validation data sets or be retained in the AI system or the AI model, although the special categories of personal data are not necessary for the purpose of the processing. In order not to disproportionately hinder the development and operation of AI and taking into account the capabilities of the controller to identify and remove special categories of personal data, derogating from the prohibition on processing special categories of personal data under Article 9(2) of Regulation (EU) 2016/679 should be allowed. The derogation should only apply where the controller has implemented appropriate technical and organisational measures in an effective manner to avoid the processing of those data, takes the appropriate measures during the entire lifecycle of an AI system or AI model and, once it identifies such data, effectively remove them. If removal would require disproportionate effort, notably where the removal of special categories of data memorised in the AI system or AI model would require re-engineering the AI system or AI model, the controller should effectively protect such data from being used to infer outputs, being disclosed or otherwise made available to third parties. This derogation should not apply where the processing of special categories of personal data is necessary for the purpose of the processing. In this case, the controller should rely on the derogations pursuant to Article 9(2)(a) – (j) of Regulation (EU) 2016/679.
- (34) **Processing of** biometric data, as defined in Article 4(14) of Regulation (EU) 2016/679, means processing of certain characteristics of a natural person through a specific technical means and which allows or confirms the unique identification of that person. The notion of biometric data includes two distinct functions, namely the identification of a natural person or the verification (also called authentication) of his or her claimed identity, both of which rely on different technical processes. The identification process is based on a ‘one-to-many’ search of the data subject’s biometric data in a database, while the verification process is based on a ‘one-to-one’ comparison of biometric data provided by the data subject, who is thereby claiming his or her identity. Derogating from the prohibition to process biometric

data under Article 9(1) of the Regulation (EU) 2016/679 should also be allowed where the verification of the claimed identity of the data subject is necessary **and proportionate** for a purpose pursued by the controller; and **when provided for under Union or Member States law. The controller should choose from equally effective means the less intrusive one. This derogation should apply where** suitable safeguards apply to enable the data subject to have sole control of ensure that the biometric data or the means needed for the verification process are under the sole control and possession of the data subject. For example, **this is the case** where the biometric data are securely stored solely at the side device of the data subject or are securely stored at the side of by the controller in a state-of-the-art encrypted form and the encryption key or equivalent means is **securely** held solely by the data subject, ~~that~~ **and subject to measures ensuring the overall security of processing is not likely to create significant risks to his or her fundamental rights and freedoms. The controller does not gain knowledge of the, including during the enrolment phase of data subject's biometric data or only for a very limited time and during the verification process.**

- (35) Article 15 of Regulation (EU) 2016/679 provides data subjects with the right to obtain **confirmation** from the controller ~~confirmation as to whether or not personal data concerning him or her are being processed and, where that is the case, access to the personal data and certain additional information.~~ The right of access should allow the data subject to be aware of, and to verify, the lawfulness of the processing and enable him or her to exercise his or her other rights under Regulation (EU) 2016/679. ~~By contrast, it should be clarified in Article 12 (5) of that of the Regulation already provides that where the request to exercise that the right of access, which is from the outset favourable to data subjects, is manifestly unfounded or excessive, the controller may either charge a reasonable fee or refuse to act on the request. It is important to clarify that this should not be abused in the sense that apply also where an abusive intention on the part of the data subjects abuse them for purposes other than the protection of their data subject submitting those requests can be demonstrated by the controller.~~ For example, such an ~~abuse of the right of access abusive intention would arise where the data subject intends to cause the controller to refuse an access request, in order to subsequently demand the payment of compensation, potentially under the threat of bringing a claim for damages.~~ Other examples of abuse include situations where data subjects makesubmits excessive use of the right of access **numbers of identical or largely similar requests with the only sole**

intent of causing damage or harm to the controller. **Another example of abusive intention includes situations** ~~or~~ when an individual makes a request, but at the same time offers to withdraw it in return for some form of benefit from the controller. ~~Moreover, in order to keep their burden to a reasonable extent, controllers should bear a lower burden of proof regarding the excessive character of a request than regarding the manifestly unfounded character of a request. The reason is that the manifestly unfounded character of a request depends on facts that lie principally within the controller's sphere of responsibility, whereas the excessive character of a request concerns the possibly abusive conduct of a data subject, which lies primarily outside the controller's sphere of influence, and therefore the controller may be able to prove such abuse only to a reasonable level. In any event, while requesting access under Article 15 of Regulation (EU) 2016/679 the data subject should be as specific as possible. Overly broad and undifferentiated requests should also be regarded as excessive.~~

- (36) Article 13 of Regulation (EU) 2016/679 requires the data controller to provide the data subject with certain information on the processing of his or her personal data as well as certain further information necessary to ensure fair and transparent processing, as defined in paragraphs 1, 2 and 3 of that provision. According to paragraph 4 of Article 13 of Regulation (EU) 2016/679, that obligation does not apply where and insofar as the data subject already has the information. To further reduce the burden of data controllers, without undermining the possibilities of the data subject to exercise his or her rights under Chapter III of ~~the~~**that** Regulation, this derogation should be extended to situations where the processing is not likely to result in a high risk, within the meaning of Article 35 of ~~the~~**that** Regulation, and there are reasonable grounds to assume that the data subject already has the information referred to in points (a) and (c) of paragraph 1 of Article 13 in the light of the context in which the personal data have been collected, in particular regarding the relationship between data subjects and the controller. **The application of the derogation from the information obligation should not undermine the principle of transparency and should be limited to situations where the controller can objectively demonstrate that the data subject already possesses the required information.** These should be the situations where the **personal data are collected in the context of a direct, limited and clearly circumscribed** relationship between ~~the~~**data subjects and a** controller and ~~the data subject is very clear and circumscribed and the controller's activity is not data-intensive~~**does not involve the processing of a large amount of personal data,**

such as the relationship between a craftsman and their clients, where the scope of processing is limited to the minimum data necessary to perform the service. ~~The controller's activity is not data intensive where it collects a low amount of personal data and its processing operations are not complex, which is not the case, for example, in the field of employment. In such circumstances, that is to say when the processing is non dataintensive, non-complex and where the controller collects a low amount of personal data, it should be reasonable to expect, for instance, that the data subject has the information on the identity and contact details of the controller as well as on the purpose of the processing when that processing is carried out for the performance of a contract to which a data subject is a party, or when the data subject has given his or her consent to that processing, in accordance with the requirements laid down in Regulation (EU) 2016/679.~~ The same should apply to associations and sport clubs where the processing of personal data is confined to the management of membership, communication with members and the organisation of activities. Nevertheless, this derogation from the obligations of Article 13 is without prejudice to the independent obligations of the controller under Article 15 of that Regulation, which applies in case the data subject requests access based on the latter provision. Where the derogation from the obligations of Article 13 does not apply, in order to balance the need for completeness and easy understanding by the data subject, controllers may adopt a layered approach when providing the information required, notably by allowing users to navigate to further information.

- (37) Where the **further processing by the same controller** takes place for the purpose of scientific research and the provision of information to the data subject proves to be impossible or would involve a disproportionate effort it should not be necessary to provide the information provided for under Article 13 of this Regulation. The controller should make reasonable efforts to acquire contact details if they are readily available and acquisition would not require a disproportionate effort. The provision of the information would involve a disproportionate effort in particular where the controller at the time of collection of the personal data did not know or anticipate that it would process personal data for scientific research purposes at a later stage, in which case it may not have easily available contact details of the data subjects. In such situations the controller should inform data subjects indirectly, such as by making the information publicly available. The provision of such information should ensure that as many data subjects concerned as

possible are reached. Relevant means to make the information publicly available should be determined depending on the context of the research project and the data subjects involved.

- (38) ~~Article 22 of Regulation (EU) 2016/679 provides for rules governing the processing of personal data when the data controller makes decisions which have legal effects or similarly significant effects on the data subject, based solely on automated processing. In order to provide greater legal certainty, it should be clarified that decisions based solely on automated processing are allowed when specific conditions are met, as set out in Regulation (EU) 2016/679. It should also be clarified that when assessing whether a decision is necessary for entering into, or performance of, a contract between the data subject and a data controller, as set out in Article 22(2)(a) of Regulation (EU) 2016/679, it should not be required that the decision could be taken only by solely automated processing. This means that the fact that the decision could also be taken by a human does not prevent the controller from taking the decision by solely automated processing. When several equally effective automated processing solutions exist, the controller should use the less intrusive one.~~
- (39) In order to reduce the burden on controllers while ensuring that supervisory authorities have access to the relevant information and can act on violations of the Regulation, the threshold for notification of a personal data breach to the supervisory authority under Article 33 of Regulation (EU) 2016/679 should be aligned with that of communication of a personal data breach to the data subject under Article 34 of that Regulation. In the case of a data breach that is not likely to result in a high risk to the rights and freedoms of natural persons, the controller should not be required to notify the competent supervisory authority. The higher threshold for notifying a data breach to the supervisory authority does not affect the obligation of the controller to document the breach in accordance with paragraph 5 of Article 33 of Regulation (EU) 2016/679, or its obligation to be able to demonstrate its compliance with that Regulation, in accordance with Article 5(2) of that Regulation. In order to facilitate compliance by controllers and a harmonised approach in the Union, the Board should ~~prepare~~ **establish and make public** a common template for notifying data breaches to the competent supervisory authority and a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. ~~The Commission should take due account of the proposal prepared by the Board and review them, as necessary, prior to adoption, as well as a~~ **common list of circumstances in which a personal data breach does not result in such**

a high risk. In order to take account of new information security threats, the common template and the list should be reviewed at least every three years and updated where necessary. The lack of a common list of circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person should not affect the obligations of controllers to notify those breaches. **The alignment of notification thresholds does not affect the controller's obligation to carry out an individual risk assessment and to maintain complete documentation of personal data breaches in accordance with Article 33(5) and Article 30 of Regulation (EU) 2016/679.**

- (40) Article 35 of that Regulation (EU) 2016/679 requires controllers to conduct a data protection impact assessment where the processing of personal data is likely to result in a high risk to the rights and freedoms of natural persons. The supervisory authorities established pursuant to that Regulation are required to establish and make public a list of the kind of processing operations which are subject to the requirement for a data protection impact assessment. In addition, the Regulation provides that supervisory authorities may establish and make public a list of the kind of processing operations for which no data protection impact assessment is required. In order to effectively contribute to the aim of convergence of the economies and to effectively ensure free flow of personal data between Member States, increase legal certainty, facilitate compliance by controllers and ensure a harmonised interpretation of the notion of a high risk to the rights and freedoms of data subjects, a single list of processing operations should be provided at EU level, to replace the existing national lists. In addition, the publication of a list of the type of processing operations for which no data protection impact assessment is required, which is currently optional, should be made mandatory. The lists of processing operations should be ~~prepared~~**established and made public** by the Board ~~and adopted by the Commission as an implementing act~~. In order to facilitate compliance by controllers, the Board should also ~~prepare~~**establish and make public** a common template and a common methodology for conducting data protection impact assessments, ~~to be adopted by the Commission as an implementing act~~. ~~The Commission should take due account of the proposals prepared by the Board and review them, as necessary, prior to adoption~~. In order to take account of technological developments, the lists and the common template and methodology should be reviewed at least every three years and updated where necessary.

- (41) Regulation (EU) 2018/1725 of the European Parliament and of the Council² applies to the processing of personal data by the Union institutions, bodies, offices and agencies. Directive (EU) 2016/680 of the European Parliament and of the Council³ applies to the processing of personal data by competent authorities for the purposes of the prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties. Regulation (EU) 2018/1725 and Directive (EU) 2016/680 should be brought into alignment with the amendments to Regulation (EU) 2016/679 introduced by this Regulation.
- (42) As clarified in recital 5 of Regulation (EU) 2018/1725, whenever the provisions of Regulation (EU) 2018/1725 follow the same principles as the provisions of Regulation (EU) 2016/679, those two sets of provisions should, under the case law of the Court of Justice of the European Union, be interpreted homogeneously. The scheme of Regulation (EU) 2018/1725 should be understood as equivalent to the scheme of Regulation (EU) 2016/679. Therefore, this Regulation also amends the provisions of Regulation (EU) 2018/1725 that are concerned by the amendments of Regulation (EU) 2016/679, insofar as the latter amendments are also relevant in the context of the processing of personal data by the Union institutions, bodies, offices and agencies.
- (43) In order to provide a strong and coherent data protection framework in the Union, the necessary adaptations of Directive (EU) 2016/680 and any other Union legal act applicable to such processing of personal data should follow after the adoption of this regulation, in order to allow for their application as close as possible to the entry into application of the amendments to Regulation (EU) 2016/679 and Regulation (EU) 2018/1725.
- (44) The storing of personal data, or the gaining of access to personal data already stored, in a

² Regulation (EU) 2018/1725 of the European Parliament and of the Council of 23 October 2018 on the protection of natural persons with regard to the processing of personal data by the Union institutions, bodies, offices and agencies and on the free movement of such data, and repealing Regulation (EC) No 45/2001 and Decision No 1247/2002/EC (OJ L 295, 21.11.2018, p. 39, ELI: <http://data.europa.eu/eli/reg/2018/1725/oj>).

³ Directive (EU) 2016/680 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of the prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, and on the free movement of such data, and repealing Council Framework Decision 2008/977/JHA (OJ L 119, 4.5.2016, p. 89, ELI: <http://data.europa.eu/eli/dir/2016/680/oj>).

terminal equipment and the subsequent processing of such data should be regulated under a single legal framework, namely Regulation (EU) 2016/679, where the subscriber of the electronic communications service or the user of the terminal equipment is a natural person. The amendments presented in this Regulation continue to offer the highest levels of protection for personal data, while simplifying the experiences of data subjects in exerting their rights and expressing their choices online. The amendments concern in particular storage of information in that equipment, accessing or otherwise collecting information from that equipment that entails the processing of personal data through cookies or similar technologies to gain information from the terminal equipment. The relevant rules should also apply regardless of whether the terminal equipment is owned by the natural person or by another legal or natural person.

The storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment should continue to be allowed only on the basis of consent. Similar to the approach in Directive 2002/58/EC, this requirement should not preclude storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person, when that is based on Union or Member State law within the meaning of Article 6 of Regulation (EU) 2016/679 and if it fulfils all conditions of lawfulness laid down in that provision, and is done for the objectives laid down in Article 23(1) of Regulation (EU) 2016/679.

With a view to reducing the compliance burden and providing legal clarity to controllers, and given that certain purposes of processing pose a low risk to the rights and freedoms of data subjects or that such processing may be necessary to provide a service requested by the data subject, it is necessary to define a limitative list of purposes for which the processing should be permitted without consent. As regards storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment, and subsequent processing that is necessary for those purposes, this Regulation should therefore provide that the processing is lawful. The controller, such as a media service provider, may mandate a processor, such as a market research company, to carry out the processing on its behalf.

For the subsequent processing of personal data for other purpose than those defined in the limitative list, Article 6 and, where relevant, Article 9 of Regulation (EU) 2016/679 should

be applied. It is the responsibility of the controller in the light of the principle of accountability to choose the appropriate legal basis for the intended processing. In order to be able to rely on legitimate interest under Article 6(1), point f, of Regulation (EU) 2016/679 as a ground for the subsequent processing of personal data, the controller must show that it pursues the controller's or third parties' legitimate interest, the processing is necessary in order to achieve the purpose of that legitimate interest, and the interests or fundamental rights of the data subject do not override the interests pursued by the controller. In this context, controllers should take utmost account of the following elements: whether the data subject is a child; the reasonable expectations of data subject; the impact on the individual either because of the scale of data processed or the sensitivity of the data processed; the scale of the processing at issue in the sense that the processing cannot be particularly extensive either because of their amount or the range of categories of data; the processing should be based on data limited to what is necessary and cannot be based on monitoring of large parts of the online activity of the data subjects; and other relevant factors as appropriate. The processing should not give rise to the continuous monitoring of the data subject's private life.

Where the controller cannot rely on legitimate interest as a legal ground for the subsequent processing, the processing should be based on another ground in Article 6(1), in particular on consent in accordance with Articles 6 and 7 of Regulation (EU) 2016/679, provided that all principles of Regulation (EU) 2016/679 are met.

- (45) Data subjects that have refused a request for consent are often confronted with a new request to give consent each time they visit the same controller's online service again. This may have detrimental effects to the data subjects which may consent just in order to avoid repeating requests. The controller should therefore be obliged to respect the data subject's choices to refuse a request for consent for at least a certain period.
- (46) Data subjects should have the possibility to rely on automated and machine-readable indications of their choice to consent or refuse a consent request or object to the processing of data. Such means should follow the state of the art. They can be implemented in the settings of a web browser or in the EU Digital Identity Wallet as set out by Regulation (EU) 914/2014, or any other adequate means. Rules set out in this Regulation should support the emergence of market-driven solutions with appropriate interfaces. The controller should be obliged to respect automated and machine-readable indications of data

subject's choices once there are available standards. In light of the importance of independent journalism in a democratic society and in order not to undermine the economic basis for that, media service providers should not be obliged to respect the machine-readable indications of data subject's choices. The obligation for providers of web browsers to provide the technical means for data subjects to make choices with respect to the processing should not undermine the possibility for media service providers to request consent by data subjects.

- (47) Directive 2002/58/EC on privacy and electronic communications 'ePrivacy Directive'), last revised in 2009, provides a framework for the protection of the right to privacy, including the confidentiality of communications. It also specifies Regulation (EU) 2016/679 in relation to processing of personal data in the context of electronic communication services. It protects the privacy and the integrity of user's or subscriber's terminal equipment used for such communications. The current provision of Article 5(3) of Directive 2002/58/EC should remain applicable insofar as the subscriber or user is not a natural person, and the information stored or accessed does not constitute or lead to the processing of personal data.
- (48) Article 4 of Directive 2002/58/EC should be repealed. Article 4 of Directive 2002/58/EC sets requirements for providers of publicly available electronic communications services as regards safeguarding the security of their services and notification requirements. Subsequently, Directive (EU) 2022/2555 has set new requirements as regards cybersecurity risk-management measures and incident reporting for those providers. In order to reduce overlapping obligations for entities in the electronic communications sector, Article 4 of Directive 2002/58/EC should be repealed. As regards the security of processing of personal data pursuant to Article 4(1) and (1a) of this directive and the notification of personal data breaches pursuant to Article 4(3) to (5) of Directive 2002/58/EC this directive, the Regulation (EU) 2016/679 already provide for comprehensive and up-to-date rules. These rules should therefore apply to providers of publicly available electronic communication services and providers of public communications networks, thereby ensuring that one regime applies to the controllers and processors.
- (58) The European Data Protection Supervisor ~~was~~**and the European Data Protection Board** were consulted in accordance with Article ~~42(1)~~**42** of Regulation (EU) 2018/1725 of the

European Parliament and of the Council⁴, and delivered ~~its~~**their joint** opinion on [DATE].
~~The European Data Protection Board was consulted in accordance with Article 42(2) of Regulation (EU) 2018/1725 and delivered an opinion on [DATE]~~**10 February 2026.**

- (59) Regulation (EU) 2019/1150 establishes a targeted set of mandatory rules at Union level to ensure a fair, predictable, sustainable and trusted online business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field for businesses in digital markets. In the interest of simplification of Union legislation in the field of online intermediation services and online platforms, and given that the objectives and material provisions of the Platform-to-Business Regulation are largely covered by the Digital Services Act and the Digital Markets Act, Regulation (EU) ~~2019/1050~~**2019/1150** should be repealed. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 contribute to a fully harmonised regulatory framework for digital services and digital markets, by approximating national measures concerning the requirements for providers of intermediary services and the contestability and fairness of core platforms services provided by gatekeepers. For purposes of legal certainty **and for purposes of keeping the necessary level of protection for business users**, selected definitions in Article 2, the provisions on restrictions and suspensions in Article 4, as well as on the internal complaint-handling system in Article 11 of Regulation (EU) 2019/1150 that are crossreferenced by other legal acts, **or that are not covered by other legal acts**, in particular Directive (EU) 2023/2831 on improving working conditions in platform work, and Article 15 ensuring enforcement, will temporarily remain in application until ~~the original acts are amended~~**.2032.**
- (61) **The amendments to Regulation (EU) 2016/679 and Regulation (EU) 2018/1725 are based on Article 16 TFEU. The amendments to Directive 2002/58/EC are based on**

⁴ Regulation (EU) 2018/1725 of the European Parliament and of the Council of 23 October 2018 on the protection of natural persons with regard to the processing of personal data by the Union institutions, bodies, offices and agencies and on the free movement of such data, and repealing Regulation (EC) No 45/2001 and Decision No 1247/2002/EC (OJ L 295, 21.11.2018, p. 39, ELI: <http://data.europa.eu/eli/reg/2018/1725/oj>).

Article 16 TFEU and Article 114 TFEU. All other amendments are based on Article 114 TFEU.

Article 3

Amendments to Regulation (EU) 2016/679 (GDPR)

Regulation (EU) 2016/679 is amended as follows:

1. Article 4 is amended as follows:

~~(a) in point 1, the following sentences are added:~~

~~‘Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.’~~

~~(b)~~ the following points are added:

‘(32) ‘terminal equipment’ means terminal equipment as set out in Article 1(1) of Directive 2008/63/EC;

(33) for ‘electronic communications networks’ the definition of Article 2(1) of Directive (EU) 2018/1972 shall apply;

(34) ‘web browser’ means web browser as defined in Article 2(11) of Regulation (EU) 2022/1925;

(35) ‘media service’ means a media service as defined in Article 2(1) of Regulation (EU) 2024/1083;

(36) ‘media service provider’ means a media service provider as defined in Article 2(2) of Regulation (EU) 2024/1083;’

(37) ‘online interface’ means an online interface as defined in Article 3(m) of

- (38) ~~“scientific research” means any research which can also support innovation, such as technological development and demonstration. These actions shall contribute to existing scientific knowledge or apply existing knowledge in novel ways, be carried out with the aim of contributing to the growth of society’s general knowledge and wellbeing and adhere to ethical standards in the relevant research area. This does not exclude that the research may also aim to further a commercial interest.”~~

2. Article 5 (1)(b) is replaced by the following:

‘collected for specified, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes shall, **subject to the application of appropriate safeguards** in accordance with Article 89(1), be considered to be compatible with the initial purposes, independent of the conditions of Article 6(4) of this Regulation, purpose (‘purpose limitation’);’

3. Article 9 is amended as follows:

(a) in paragraph 2, the following points are added:

‘(k) processing in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, subject to the conditions referred to in paragraph 5.

- (l) processing of biometric data is necessary for the purpose of confirming the identity of a data subject (verification), where the biometric data or the means needed for the **one-to-one** verification is under the sole control and possession of the data subject; **and in so far as it is authorised by Union or Member State law providing for appropriate safeguards for the fundamental rights and the interests of the data subject**’

(b) the following paragraph is added:

- ‘5. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to avoid v the

collection and otherwise processing of special categories of personal data. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties.'

4. In Article 12, paragraph 5 is replaced by the following:

'5. Information provided under Articles 13 and 14 and any communication and any actions taken under Articles 15 to 22 and 34 shall be provided free of charge. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character ~~or also, for~~ **and, in the case of** requests under Article 15, **where an abusive intention on the part of** ~~because~~ the data subject ~~abuses the rights conferred by this regulation for purposes other than the protection of their data~~ **submitting those requests can be demonstrated**, the controller may either:

- (a) charge a reasonable fee taking into account the administrative costs of providing the information or communication or taking the action requested; or
- (b) refuse to act on the request.

~~The controller shall bear the burden of demonstrating that the request is manifestly unfounded or that there are reasonable grounds to believe that it is excessive, or that~~ **the request is submitted with an abusive intention.'**

5. In Article 13, paragraph 4 is replaced by the following:

'4. Paragraphs 1, 2 and 3 shall not apply where **and insofar as the data subject has the information and where** the personal data ~~have been~~ are collected in the context of a ~~clear and~~ **direct, limited and clearly** circumscribed relationship between data subjects and a controller exercising an activity that is not ~~data-intensive~~ **likely to**

result in a high risk to the rights and freedoms of data subjects nor involve the processing of large amounts of personal data, special categories of personal data or complex processing operations and there are reasonable grounds to assume that the data subject already has the information referred to in points (a) and (c) of paragraph 1, unless.

The first subparagraph shall not apply where the controller intends to process the data collected from the data subject for other purposes, transmits the data to other recipients or categories of recipients, transfers the data to a third country, carries out automated decision-making, including profiling, referred to in Article 22(1), or the processing is likely to result in a high risk to the rights and freedoms of data subjects within the meaning of Article 35.'

6. In Article 13, paragraph 5 is added:

'5. When the **further** processing takes place for scientific research purposes by the **same controller and where and insofar as** and the provision of information referred to under paragraphs 1, 2 and 3 proves impossible or would involve a disproportionate effort subject to the conditions and safeguards referred to in Article 89(1) or in so far as the obligation referred to in paragraph 1 of this Article is likely to render impossible or seriously impair the achievement of the objectives of that **further** processing, **subject to the conditions and safeguards referred to in Article 89(1)**, the controller does not need to provide the information referred to under paragraphs 1, 2 and 3. In such cases the controller shall take appropriate measures to protect the data subject's rights and freedoms and legitimate interests, including making the information publicly available.'

7. ~~In Article 22, paragraphs 1 and 2 are replaced by the following:~~

~~'1. A decision which produces legal effects for a data subject or similarly significantly affects him or her may be based solely on automated processing, including profiling, only where that decision:~~

~~(a) — is necessary for entering into, or performance of, a contract between the data subject and a data controller regardless of whether the decision could be taken otherwise than by solely automated means;~~

- ~~(b) is authorised by Union or Member State law to which the controller is subject and which also lays down suitable measures to safeguard the data subject's rights and freedoms and legitimate interests; or~~
- ~~(c) is based on the data subject's explicit consent.'~~

8. Article 33 is amended as follows:

(a) paragraph 1 is replaced by the following:

'1. In the case of a personal data breach that is likely to result in a high risk to the rights and freedoms of natural persons, the controller shall without undue delay and, where feasible, not later than 9672 hours after having become aware of it, notify the personal data breach [via the single-entry point established pursuant to Article 23a of Directive (EU) 2022/2555] to the supervisory authority competent in accordance with Article 55 and Article 56 of this Regulation. Where the notification to the supervisory authority is not made within 96 hours, it shall be accompanied by reasons for the delay.'

(b) the following paragraph is added:

'1a. Until the establishment of the single-entry point pursuant to Article 23a of Directive (EU) 2022/2555, controllers shall continue to notify personal data breaches directly to the competent supervisory authority in accordance with Article 55 and Article 56 of this Regulation.'

(c) the following paragraphs are added:

'6. The Board shall ~~prepare and transmit to the Commission a proposal for~~**establish and make public** a common template for notifying a personal data breach to the competent supervisory authority referred to in paragraph 1 as well as ~~for~~ a list of the circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person **and a list of the circumstances in which it is not likely to result in such a high risk.** ~~The template and lists. The proposals shall be submitted to the Commission~~**available** within [OP date = nine months of the entry into application of this Regulation]. ~~The Commission after due consideration~~

~~reviews it, as necessary, and is empowered to adopt it by way of an implementing act in accordance with the examination procedure set out in Article 93(2).~~

7. The template and ~~the list~~**lists** referred to in paragraph 6 shall be reviewed at least every three years and updated where necessary. ~~The Board shall submit its assessment and possible proposals for updates to the Commission in due time. The Commission after due consideration of the proposals reviews them and is empowered to adopt any updates following the procedure in paragraph 6.~~²

9. Article 35 is amended as follows:

(a) paragraphs 4, 5 and 6 are replaced by the following:

- ‘4. The Board shall ~~prepare and transmit to the Commission a proposal~~
foreestablish and make public a list of the kind of processing operations which are subject to the requirement for a data protection impact assessment pursuant to paragraph 1.
5. The Board shall ~~prepare and transmit to the Commission a proposal~~
foreestablish and make public a list of the kind of processing operations for which no data protection impact assessment is required.
6. The Board shall ~~prepare and transmit to the Commission a proposal~~
foreestablish and make public a common template and a common methodology for conducting data protection impact assessments.’

(b) the following ~~paragraphs are~~**paragraph** is inserted:

- ‘6a. ~~The proposals for the lists referred to in paragraphs 4 and 5 and for the template and methodology referred to in paragraph 6 shall be submitted to the Commission within [OP date = 9 months of the entry into application of this Regulation]. The Commission after due consideration reviews them, as necessary, and is empowered to adopt them by way of an implementing act in accordance with the examination procedure set out in Article 93(2).~~

6b. ~~The lists and the template and methodology referred to in paragraph 6a shall be reviewed at least every three years and updated where necessary. The Board shall submit its assessment and possible proposals for updates to the Commission in due time. The Commission after due consideration of the proposals reviews them and is empowered to adopt any updates following the procedure in paragraph 6a.~~

6c. Lists of the kind of processing operations which are subject to the requirement for a data protection impact assessment and of the kind of processing operations for which no data protection impact assessment is required established and made public by supervisory authorities remain valid until the Commission adopts the implementing act **Board establishes and makes public the lists** referred to in paragraph 6a **4 and 5.**'

10. The following article is added:

~~'Article 41a~~

(1) ~~The Commission may adopt implementing acts to specify means and criteria to determine whether data resulting from pseudonymisation no longer constitutes personal data for certain entities.~~

(2) ~~For the purpose of paragraph 1 the Commission shall:~~

(a) ~~assess the state of the art of available techniques;~~

(b) ~~develop criteria and or categories for controllers and recipients to assess the risk of re-identification in relation to typical recipients of data.~~

(3) ~~The implementation of the means and criteria outlined in an implementing act may be used as an element to demonstrate that data cannot lead to reidentification of the data subjects.~~

(4) ~~The Commission shall closely involve the EDPB in the preparations of the implementing acts. The EPDB shall issue an opinion on the draft implementing acts within a deadline of 8 weeks as of the receipt of the draft from the Commission.~~

~~(5) The Implementing Acts shall be adopted in accordance with the examination procedure referred to in Article 93(3).'~~

11. In Article 57(1) is amended as follows:

~~(a)~~ point (k) is deleted;

12. In Article 64(1), point (a) is deleted.

13. In Article 70(1), point (h) is deleted.

14. In Article 70(1), the following points are inserted:

~~'(ha) prepare and transmit to the Commission a proposal for~~**establish** a list of the kind of processing operations which are subject to the requirement for a data protection impact assessment and for which no data protection impact assessment is required, pursuant to Article 35.

~~(hb) prepare and transmit to the Commission a proposal for~~**establish** a common template and a common methodology for conducting data protection impact assessments, pursuant to Article 35.

~~(hc) prepare and transmit to the Commission a proposal for~~**establish** a common template for notifying a personal data breach to the competent supervisory authority as well as for a list of the circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person pursuant to Article 33 **and a list of the circumstances in which it is not likely to result in such a high risk**

hca issue guidelines, recommendations and best practices in accordance with point (e) of this paragraph on pseudonymisation, clarifying circumstances whether a natural person is identifiable and means reasonably likely to be used to identify a natural person, and specifying means and criteria to determine whether data resulting from pseudonymisation may no longer constitute personal data for certain entities'

15. After Article 88, the following articles are added:

'Article 88a

- (1) Storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person is only allowed when that person has given his or her consent, in accordance with this Regulation.
- (2) Paragraph 1 does not preclude storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person, based on Union or Member State law within the meaning of, and subject to the conditions of Article 6, to safeguard the objectives referred to in Article 23(1).
- (3) Storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person without consent, and subsequent processing, shall be lawful to the extent it is necessary for any of the following:
 - (a) carrying out the transmission of an electronic communication over an electronic communications network;
 - (b) providing a service explicitly requested by the data subject;
 - (c) creating aggregated information about the usage of an online service to measure the audience of such a service, where it is carried out by the controller of that online service solely for its own use;
 - (d) maintaining or restoring the security of a service provided by the controller and requested by the data subject or the terminal equipment used for the provision of such service.
- (4) Where storing of personal data, or gaining of access to personal data already stored, in the terminal equipment of a natural person is based on consent, the following shall apply:
 - (a) the data subject shall be able to refuse requests for consent in an easy and intelligible manner with a single-click button or equivalent means;

- (b) if the data subject gives consent, the controller shall not make a new request for consent for the same purpose for the period during which the controller can lawfully rely on the consent of the data subject;
- (c) if the data subject declines a request for consent, the controller shall not make a new request for consent for the same purpose for a period of at least six months.

This paragraph also applies to the subsequent processing of personal data based on consent.

- (5) This Article shall apply from [OP: please insert the date = 6 months following the date of entry into force of this Regulation]

Article 88b

Automated and machine-readable indications of data subject's choices with respect to processing of personal data in the terminal equipment of natural persons

- (1) Controllers shall ensure that their online interfaces allow data subjects to:
 - (a) Give consent through automated and machine-readable means, provided that the conditions for consent laid down in this Regulation are fulfilled;
 - (b) decline a request for consent and exercise the right to object pursuant to Article 21(2) through automated and machine-readable means.
- (2) Controllers shall respect the choices made by data subjects in accordance with paragraph 1.
- (3) Paragraphs 1 and 2 shall not apply to controllers that are media service providers when providing a media service.
- (4) The Commission shall, in accordance with Article 10(1) of Regulation (EU) 1025/2012, request one or more European standardisation organisations to draft standards for the interpretation of machine-readable indications of data subjects' choices.

Online interfaces of controllers which are in conformity with harmonised standards or parts thereof the references of which have been published in the Official Journal of the European Union shall be presumed to be in conformity with the requirements covered by those standards or parts thereof, set out in paragraph 1.

- (5) Paragraphs 1 and 2 shall apply from [OP: please insert the date = 24 months following the date of entry into force of this Regulation].
- (6) Providers of web browsers, which are not SMEs, shall provide the technical means to allow data subjects to give their consent and to refuse a request for consent and exercise the right to object pursuant to Article 21(2) through the automated and machine-readable means referred to in paragraph 1 of this Article, as applied pursuant to paragraphs 2 to 5 of this Article.
- (7) Paragraph 6 shall apply from [OP: please insert the date = 48 months following the date of entry into force of this Regulation].

Article 88c

Processing in the context of the development and operation of AI

Where the processing of personal data is necessary for the interests of the controller in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, such processing may be pursued for legitimate interests within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, where appropriate, except where other Union or national laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Any such processing shall be subject to appropriate organisational, technical measures and safeguards for the rights and freedoms of the data subject, such as to ensure respect of data minimisation during the stage of selection of sources and the training and testing of AI an system or AI model, to protect against non-disclosure of residually retained data in the AI system or AI model to ensure enhanced transparency to data subjects and providing data subjects with an unconditional right to object to the processing of their personal data.'

Repeals and transitory clauses

- 1. Regulation 2019/1150/EU is repealed with effect from [date = entry into application of this Regulation].
 - 2. By way of derogation from paragraph 1, the following provisions shall continue to apply until 31 December 2032:
 - (a) Article 2, point (1);
 - (b) Article 2, point (2);
 - (c) Article 2, point (5);
 - (d) Article 4;
 - (e) Article 11; (f) Article 15.
-